

SENATE No. 2444

The Commonwealth of Massachusetts

PRESENTED BY:

Bruce E. Tarr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act promoting road safety.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	
<i>Joseph D. McKenna</i>	<i>18th Worcester</i>	<i>1/17/2025</i>
<i>Peter J. Durant</i>	<i>Worcester and Hampshire</i>	<i>3/17/2025</i>

SENATE No. 2444

By Mr. Tarr, a petition (accompanied by bill, Senate, No. 2444) of Bruce E. Tarr and Joseph D. McKenna for legislation to promote road safety through the yellow dot program. Transportation.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 2293 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act promoting road safety.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The Registrar of Motor Vehicles shall initiate a voluntary program allowing
2 interested individuals to obtain from the Registry a yellow dot window decal for placement on
3 their motor vehicle and a yellow dot folder for placement in the glove compartment of the motor
4 vehicle. Program participation shall be limited to individuals 62 years of age or over and to
5 individuals with a chronic illness.

6 The purpose of the yellow dot program is to assist participants by making critical health
7 information readily available to emergency medical responders and law enforcement personnel
8 in the event of a motor vehicle accident, a medical emergency, or any other interaction involving
9 emergency medical responders or law enforcement personnel.

Participants shall affix the yellow dot window decal on the operator's side of the motor vehicle's rear window in the lower corner. The purpose of the decal is to alert emergency medical responders or law enforcement personnel and notify them to search the glove compartment of the motor vehicle for the corresponding yellow dot folder, which shall include the participant's health information.

The purpose of the information in the folder is to assist emergency medical responders and law enforcement personnel in positively identifying the participant, communicating with the participant's family or emergency contacts, and ensuring that the participant's current medications and preexisting medical conditions are considered when treatment is administered for any injury the participant suffers in a motor vehicle accident; when treatment is administered for any other medical emergency; or when any other interaction involving emergency medical responders or law enforcement personnel occurs.

SECTION 2. In designing the yellow dot program materials, the Registrar, in consultation with the department of public health and the executive office of elder affairs, shall give consideration to the program materials used by similar programs in other states in order to maximize uniformity. Program materials shall include, but need not be limited to:

(1) a yellow decal of a size and design to be determined by the Registrar which will be affixed to the rear driver's side window of the program participant's vehicle;

(2) a health information card which provides space for a program participant to attach a recent photograph and indicate the participant's name, emergency contact information, physicians' names and contact information, medical conditions, recent surgeries, allergies,

31 medications, and any other information the Registrar shall deem to be relevant information to
32 emergency responders in the case of emergency;

33 (3) a yellow envelope of a size and design to be determined by the Registrar into which
34 the health information card established pursuant to paragraph (2) of this subsection is to be
35 inserted and then placed in the program participant's glove compartment; and

36 (4) a program instruction sheet including a toll free hotline phone number and electronic
37 mail address , established by the Registrar, to assist individuals who have questions about the
38 program or require assistance in completing the health information card.

39 SECTION 3. A fee may be charged for the issuance of the yellow dot window decal and
40 yellow dot folder. The fee shall be sufficient to cover the costs associated with the program and
41 is in addition to the regular vehicle license fee and any other fees and taxes required to be paid
42 upon registration of the motor vehicle.

43 SECTION 4. The Registrar shall adopt such rules governing the "yellow dot" program as
44 may be necessary to implement and administer the program, and shall undertake a public
45 information campaign to raise awareness of the program.

46 SECTION 5. No emergency responder shall be liable for any civil damages as a result of
47 any acts or omissions undertaken in response to incomplete, incorrect, or outdated information
48 provided on any health information card if the responder acted in good faith in rendering care at
49 the scene of a motor vehicle accident or emergency to a program participant.